

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Cooper	Team: Squad #07	CCRB Case #: 201704827	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/28/2017 10:56 PM	Location of Incident: In front of § 87(2)(b)	18 Mo. SOL 11/28/2018	Precinct: 44		
Date/Time CV Reported Wed, 06/14/2017 7:22 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 06/14/2017 7:22 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			044 PCT
2. POM Robert Vassallo	07162	954397	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Roberto Vargas	04043	954392	044 PCT
2. POM Mohammad Hossain	02679	960680	044 PCT
3. POM Ali Hussain	17006	960697	044 PCT
4. SGT Roy Simmons	03381	931223	044 PCT
5. POF Gina Panettiere	15316	961063	044 PCT
6. POM Uriel Lames	20159	958788	044 PCT
7. POM Chajdon Monestine	17560	959825	044 PCT
8. POM Victor Cruz	22651	957501	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Vassallo	Force: Police Officer Robert Vassallo used physical force against § 87(2)(b)	A . Exonerated
B . Officers	Force: Officers used physical force against § 87(2)(b)	B . Exonerated
C . POM Robert Vassallo	Discourtesy: Police Officer Robert Vassallo spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On June 14, 2017, § 87(2)(b) filed this complaint via the CCRB's on-line website.

On May 28, 2017, at approximately 10:56 p.m., in front of § 87(2)(b), in the Bronx, PO Robert Vassallo and other officers from the 44th Precinct allegedly used force against § 87(2)(b) (Allegation A: Force: exonerated and Allegation B: Force, exonerated). After § 87(2)(b) was placed in handcuffs, PO Vassallo allegedly told him, "Fuck you" (Allegation C: Discourtesy: unsubstantiated).

§ 87(2)(b) was arrested for § 87(2)(b) and was ultimately released with a criminal court summons at the 44th Precinct stationhouse. § 87(2)(b) provided cell phone video footage capturing part of the incident. The cell phone footage is embedded below.

Findings and Recommendations

Allegation A: Force: Police Officer Robert Vassallo used physical force against § 87(2)(b)

Allegation B: Force: Officers used physical force against § 87(2)(b)

Allegation C: Discourtesy: Police Officer Robert Vassallo spoke discourteously to

§ 87(2)(b)

It is undisputed that a large group of at least twenty individuals were gathered in the vicinity of § 87(2)(g) and several officers from the 44th Precinct responded to the location.

§ 87(2)(b) stated that he was walking down § 87(2)(b) with a group of individuals, including two individuals that he knew, known to the investigation as, "§ 87(2)(b) and "§ 87(2)(b)". When § 87(2)(b) approached § 87(2)(g), he noticed approximately 10 to 20 uniformed officers on the street. § 87(2)(b) stood in front of the building as officers requested that the individuals leave the location. PO Vassallo, along with at least four other officers approached § 87(2)(b). PO Vassallo pushed § 87(2)(b)'s chest and placed him against the wall behind him. As PO Vassallo handcuffed him, § 87(2)(b) heard officers behind him say, "Stop resisting." § 87(2)(b) denied that he was resisting arrest, but as he was placed in handcuffs, he felt at least five officers pull his arms upward from his buttocks to his head. The manner in which the officers pulled his arm caused § 87(2)(b) to scream out in pain. As he was handcuffed, § 87(2)(b) heard § 87(2)(b) say more than once, "Suck my dick." PO Vassallo walked § 87(2)(b) to the van, and as he placed § 87(2)(b) into the van, PO Vassallo said, "Fuck you." § 87(2)(b) was transported to the 44th Precinct stationhouse where he was ultimately released with a § 87(2)(b) summons (Board Review 6).



May 28, 2017.mp4

§ 87(2)(b) provided cell phone video footage which captures § 87(2)(b) being held against a wall and being placed in handcuffs. The video does not capture the push or other force § 87(2)(b) alleged. Due to the quality of the video and the lighting conditions, the actions taken by officers while handcuffing § 87(2)(b) are inconclusive. The video does not capture an officer uttering any discourteous statements (Board Review 7).

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According to the 44th Precinct Command Log, § 87(2)(b) and § 87(2)(b) were arrested with § 87(2)(b) § 87(2)(g) § 87(2)(b) and § 87(2)(b) were either uncooperative or unavailable to the investigation despite contact attempts made to them.

PO Vassallo stated that he and PO Roberto Vargas responded to the location after receiving a call that an officer needed assistance. Once at the location, he saw § 87(2)(b) among a group which included known gang members of the § 87(2)(b) or the § 87(2)(b). Once PO Vassallo and PO Vargas approached the crowd, members of the crowd said, “Officer suck my dick” and other profanities. PO Vassallo, Sgt. Simmons and other officers asked the individuals at the location to disperse. Each time the individuals were asked to disperse, they returned to the location seconds later. Eventually, Sgt. Simmons told PO Vassallo specifically to arrest § 87(2)(b) and told other officers to arrest the other individuals who refused to disperse.

PO Vassallo approached § 87(2)(b) to place him in handcuffs when § 87(2)(b) reacted by tensing his body and pulling his arms apart. To overcome this minor resistance, PO Vassallo used more of his strength to pull § 87(2)(b)'s arms together and successfully place him in handcuffs. PO Vassallo did not recall if he had any assistance handcuffing § 87(2)(b). PO Vassallo did not recall if he pushed § 87(2)(b) or placed him against a wall. PO Vassallo denied that he or another officer pulled § 87(2)(b)'s handcuffed wrists over his head, intentionally causing him pain, and denied that § 87(2)(b) made any comments that he was in pain. PO Vassallo acknowledged that he walked § 87(2)(b) to his van and although he heard several individuals from the crowd say, “Fuck you,” he denied that he or another officer said, “Fuck you.”

After watching the video, PO Vassallo said that he was likely one of the officers surrounding § 87(2)(b) but he could not decipher where he was based on the quality of the video. PO Vassallo could not identify any of the additional officers seen in the video (Board Review 7 and 8).

Sgt. Simmons' statement was § 87(2)(g) that despite his commands and the other officers' commands, § 87(2)(b) along with the other individuals at the location refused to disperse. While some individuals initially left the location, they eventually returned. Sgt. Simmons stated that once the individuals were asked to leave again, they responded, “Fuck you. Suck my dick,” and at least one of the individuals stated, “I live here. I don't have to move. Fuck you. Suck my dick.” Several members of the crowd began filming on their cell phones and stood within close proximity to the officers' faces. After continually asking the group to disperse for more than ten minutes, Sgt. Simmons instructed PO Vassallo, PO Vargas and other officers to arrest five to six individuals who refused to leave. Sgt. Simmons did not recognize § 87(2)(b) and did not recall the specific circumstances surrounding his apprehension. Sgt. Simmons did not see PO Vassallo or other officers pull § 87(2)(b)'s arms or pull his handcuffed wrists over his head, intentionally causing him pain. Sgt. Simmons did not hear any officer say, “Fuck you” or use any profanity towards § 87(2)(b).

After watching the video, Sgt. Simmons could only identify PO Chajdon Monestine, who was seen behind the officers who were handcuffing § 87(2)(b) and PO Victor Cruz, who was seen walking away from the group of officers handcuffing § 87(2)(b) (Board Review 13 and 14).

§ 87(2)(g) that after the individuals refused to disperse despite being told multiple times to do so, PO Hossain, PO Vassallo and the other officers that were present were instructed to arrest those individuals for disorderly conduct. While PO Hossain did not specifically recall § 87(2)(b)'s apprehension, he saw PO Vassallo handcuffing an individual, but he denied that PO Vassallo or another officer pulled the individuals' handcuffed wrists over his head, intentionally causing him pain. PO Hossain helped place at least one of them in the van, but he did not recall if that individual was § 87(2)(b). PO Hossain denied that he heard PO Vassallo say, "Fuck you," or that he or another officer used profanity while at the location. After watching the video of the incident, PO Hossain identified himself and his partner, PO Hussain, as the two Indian male officers who walked past § 87(2)(b) at the 0:07 mark in the video, as § 87(2)(b) was being handcuffed. However, PO Hossain could not identify any of the additional officers around § 87(2)(b) (Board Review 15 and 16).

PO Vargas and PO Gina Panettiere § 87(2)(g) acknowledged that they were acting as crowd control. PO Vargas and PO Panettiere denied that they saw the circumstances surrounding § 87(2)(b)'s arrest. PO Vargas and PO Panettiere denied that they heard PO Vassallo or any other officer say, "Fuck you." After watching the video, PO Vargas could not identify any of the officers surrounding § 87(2)(b). PO Panettiere could only identify her partner, PO Monestine, as the officer who was standing behind the officers handcuffing § 87(2)(b) (Board Reviews 9 - 12).

§ 87(2)(b) and § 87(2)(b) were all arrested for § 87(2)(b) and released with summonses at the 44th Precinct stationhouse (Board Review 17).

§ 87(2)(a) PHL § 18(6)

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, they recklessly create a risk by engaging in violent or threatening behavior or congregates with other persons in a public places and refuses to comply with a lawful order of the police to disperse. N.Y.S. Penal Law, Section 240.20 (Board Review 4). An officer may use force to take a lawfully arrested person into custody. Some factors to consider in determining when to use force are the actions taken by the subject, duration of the action and the presence of a hostile crowd or agitators. NYPD Patrol Guide, Section 221-01 (Board Review 5).

§ 87(2)(g)

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Thus, it is recommended that **Allegations A and B** be closed as **Exonerated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **Unsubstantiated**.

Civilian and Officer Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 2).
- PO Vassallo has been a member of service for four years and has been the subject of two previous allegations stemming from two cases, none of which have been substantiated § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined mediation.
- As of July 27, 2017, § 87(2)(b) has not filed a Notice of Claim with the New York City Comptroller's Office (Board Review 1).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date